

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)**

Writ Petition No. 9479 of 2022

IN THE MATTER OF:

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh.

-And-

IN THE MATTER OF :

Bashkar Boshu Roy Chowdhury and others

.....Petitioners

-Versus-

Deputy Commissioner, Laxmipur.

.....Respondent.

Mr. Md. Mainul Islam, Advocate

.....for the petitioners

Mr. Md. Saiefuddin Khalid, DAG

..for the Respondents

Heard and Judgment on: 22.08.2024

Present:

Ms. Justice Ashish Ranjan Das

&

Ms. Justice Fahmida Quader

Ashish Ranjan Das, J;

Rule Nisi was issued at the instance of the petitioners in the following
terms:

*“Let a Rule Nisi be issued calling upon the respondent to show
cause as to why the inaction of the respondent in disposing
application dated 07.05.2022 pending before the respondent for*

disposal (Annexure-F) should not be declared to have been made without lawful authority and is of no legal effect and as to why a direction should not be given upon the respondent to dispose of the application dated 07.05.2022 (Annexure-F) and/or pass such other or further order or orders as to this Court may seem fit and proper.”

We have heard the learned lawyer for the petitioners and the learned Deputy Attorney General.

The matter involves an alleged vested property. The petitioners seems to have earned a decree on contest in Title Suit No. 57 of 2012 and series of judgments seems to have been favouring the claim of the petitioners.

Those documents of the petitioners seem to have pressed an application before the Deputy Commissioner, Laxmipur on 07.05.2022 which is yet to be disposed of by the Deputy Commissioner, Laxmipur.

In the situation, we think it just if the Deputy Commissioner, Laxmipur is directed to decide the application for release of the property pressed by the petitioners, within 30 (thirty) days from the date of receipt of a copy of this order.

With the direction, the rule is disposed of.

No order as to costs.

Fahmida Quader, J:

I agree.

Bashar.B.O.